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Case Number: 25CHCV01230 Hearing Date: August 25, 2026 Dept: F43

Dept. F43

Hearing Date: 08-25-26

Case # 25CHCV01230, Deirmendjian

v. Fireball 8646, LLC, et al.

Trial Date: 06-26-28

MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY: Defendant Cynthia Diane Boyle

RESPONDING PARTY: Plaintiff Vic J. Deirmendjian

RELIEF REQUESTED

Order compelling plaintiff's compliance and further responses to defendant Cynthia Diane Boyle's first set of requests for production and imposing \$8,510 in monetary sanctions against plaintiff and his counsel of record, Drew Sherman, Esq. Mashian Law Group, APC.

RULING: Motion is granted. The court awards defendant Cynthia Boyle \$6,500 in sanctions.

SUMMARY OF ACTION

On April 8, 2025, plaintiff Vic J.

Diermendjian (Plaintiff) filed this action against defendants Fireball 8646, LLC, Cynthia Diane Boyle, and Brad Boyle on April 8, 2025, alleging defendants breached a listing agreement and refused to pay him a brokerage fee. On January 26, 2026, defendant Brad Boyle filed a motion for judgment on the pleadings as to the sixth, seventh, ninth, and tenth causes of action, without leave to amend. The court denied the motion in part as to the Sixth and Tenth Causes of Action and granted in part as to the Seventh and Ninth Causes of Action with leave to amend with leave to amend. (2/18/2026 Minute Order.)

Plaintiff filed and served his First Amended

Complaint on March 16, 2026, asserting ten causes of action: (1) breach of contract; (2) breach of the covenant of good faith and fair dealing; (3) fraudulent inducement; (4) concealment; (5) breach of Bus. & Prof. Code, § 17200; (6) interference with contractual relations; (7) intentional interference with prospective economic advantage; (8) quantum meruit; (9) tort of another; and (10) conspiracy. Defendants Cynthia Boyle and Fireball 8646, LLC filed and served an answer on March 26, 2026.

On April 2, 2026, defendant Cynthia Boyle

served Plaintiff with her first set of requests for production. (Declaration of Bradley W. Gould ¶¶ 3-4, Exh.

A [service by mail and email].) Responses

were due no later than May 7, 2026. On

April 27, 2026, Plaintiff's counsel requested a two-week extension to May 15,

2026, which defense counsel granted. (Id.

¶ 6, Exh. B.) On May 15, 2026,

Plaintiff's counsel requested a second two-week extension to May 29, 2026. (Id. ¶ 7, Exh. C.) Defense counsel did not immediately see the

email, and later that day, Plaintiff electronically served objection-only

responses. (Id. ¶¶ 8-9, Exh. I at

pp. 65-66.)

On June 5, 2026, defense counsel emailed

Plaintiff's counsel a "meet and confer" letter, discussing the deficiencies in the identical responses and demanding supplemental, objection-free responses and document production by end of business on June 9, 2026, or a motion to compel further would be filed on June 30, 2026.

(Gould Decl., Exh. D.) On June 8,

2026, Plaintiff's counsel responded, stating a willingness to confer further and

noticing Plaintiff's intent to provide the responses by the end of June of

2026. (Id., Exh. E.) Plaintiff's counsel mentioned delays due to Plaintiff

being out of town for personal matters and counsel's own familial obligations and an upcoming trial. Defense counsel responded two days later, stating it was not necessary for the parties to meet further beyond the items in the June 5, 2026, letter. (Id., Exh. F at p. 1.) Defense counsel also agreed to delay filing a motion to compel further and to extend the deadline for the supplemental responses to July 2, 2026, if Plaintiff's counsel agreed to extend the motion to compel further to 45 days from the date supplemental responses are served. On June 11, 2026, Plaintiff's counsel agreed to these conditions.

On June 30, 2026, Plaintiff's counsel emailed defense counsel, claiming the trial was much longer than expected, that the supplemental responses would not be complete until July 2, 2026, that responses would be served as soon as possible, and the compel further motion deadline would be tolled to align with service of the supplemental responses. (Gould Decl., Exh. G at p. 1.) The next day, defense counsel agreed to a final extension of July 6, 2026, Plaintiff's counsel responded that July 7, 2026, may not be enough time. (Id., Exh. H.) Defense counsel later clarified the deadline was July 9, 2026. As of July 21, 2026, no supplemental responses were received. (Id. ¶ 16.)

On July 21, 2026, defendant Cynthia Boyle (Ms. Boyle) filed the instant motion to compel Plaintiff's further, objection-free responses and responsive documents to her first set of requests for production and to impose \$8,510 in monetary sanctions against Plaintiff and his counsel of record.

On August 13, 2026,^[1] Plaintiff filed an untimely opposition, contending the motion is moot because he served further responses and responsive documents on August 12, 2026. Plaintiff's substantial justification for the delayed responses is that the requests were numerous, defense counsel was nonresponsive when Plaintiff's counsel requested an extension on May 15, 2026, both Plaintiff and Plaintiff's counsel had personal matters that were communicated to defense counsel, and Plaintiff's counsel kept defense counsel informed as to the status of the responses. (Declaration of Drew H. Sherman, Exhs. A, B [emails sent July 13 and 22, 2026].) Thus, the court should deny sanctions.

On August 18, 2026, Plaintiff filed a reply, asserting the motion is not moot and the supplemental responses are improper because they contain objections.

MEET AND CONFER

A motion to compel further responses to requests for production must include a “meet and confer” declaration showing a “reasonable and good faith attempt” to resolve issues outside court. (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) In Department 43, “meet and confer” means in person or via phone, not by letter or email. (Department F43 Courtroom Information, at p. 2.)

Based on the moving papers, Ms. Boyle ever attempted to contact Plaintiff’s counsel by phone, in person, or by video conference. Because the parties had already agreed on supplemental responses and the only issue requiring further discussion was deadline extensions, the court finds it was not necessary for the parties to “meet and confer” directly. Therefore, the “meet and confer” requirement is satisfied.

ANALYSIS

A. Compelling

Compliance with an Agreement to Provide Further Responses to Requests for Production

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The responding party must respond separately to each demand for production by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand. (Code Civ.

Proc., § 2031.210, subd. (a).) The

demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (Sinaiko Healthcare Consulting, Inc. v.

Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403-404.) The responding party must serve verified responses within 30 days after the requests for production are served or according to an agreed upon deadline extension.

(Code Civ. Proc., §§ 2031.260, subd. (a)(1)-(3), 2031.310, subd. (c).) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

Ms. Boyle seeks further objection-free responses to request numbers 1 through 70, contending Plaintiff waived his objections through a party agreement and by failing to serve his supplemental responses by the deadline extensions. (See Code Civ. Proc., § 2031.270, subd. (b); Code Civ. Proc., § 2030.290, subd. (a) [failing to serve a timely response waives “any objection to the demand, including one based on privilege or on the protection for work product”].)

However, Plaintiff served supplemental responses after Ms. Boyle filed the instant motion. But service of the supplemental responses does not divest the court of its authority to evaluate the adequacy of the responses. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 396; *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, 255-256.)

When a responding party agrees in writing to provide objection-free discovery responses but then serves responses containing objections, the responses violate the parties’ binding stipulation. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 273-275 [stipulations between counsel concerning discovery obligations are binding]; see also *Jerry’s Shell v. Equilon Enterprises, LLC* (2005) 134 Cal.App.4th 1058, 1072-1074.) Furthermore, if a party agrees to produce documents in response to requests for production but fails to do so, the propounding party may move to compel the responding party’s compliance with the agreement. (Code Civ. Proc., § 2031.320, subd. (a).) The propounding party must show that the responding party did not comply with the agreement. (*Id.*)

Ms. Boyle’s June 5, 2026, “meet and confer” letter demanded complete, unqualified, supplemental responses to the requests for production “without objection.” (Gould Decl., Exh. D at p. 4, para. 4.) Plaintiff’s counsel subsequently agreed to serve the requested supplemental responses by several deadline extensions and never challenged Ms. Boyle’s request for “objection-free” supplemental responses. The court cannot evaluate the adequacy of the

responses because the parties do not present the court with copies of the supplemental responses. But Plaintiff admits, and Ms. Boyle confirms, the supplemental responses include both objections and substantive responses. Because Plaintiff agreed in writing to serve objection-free responses, the subsequently served responses containing objections are both untimely under the parties' agreement and inadequate on their face.

Therefore, the court grants defendant Cynthia Boyle's motion to compel further responses and responsive documents to her first set of requests for production.

Plaintiff is ordered to serve further objection-free and verified responses and documents to Ms. Boyle's first set of requests for production within 30 days of the issuing of this order.

B. Sanctions

Ms. Boyle asks the court to impose \$8,510 in monetary sanctions against Plaintiff and his counsel of record. (Gould Decl. ¶ 20.)

The court must impose monetary sanctions against any party or attorney who unsuccessfully makes or opposes a motion to compel an answer or produce documents or a motion to compel compliance with a demand, unless it finds that the party subject to sanctions acted with substantial justification or that other circumstances make the sanctions unjust. (Code Civ. Proc., §§ 2025.480, subd. (j), 2031.320, subd. (b).) The court may also award sanctions under the Discovery Act in favor of the party who files a motion to compel discovery even if the requested discovery was provided to the moving party after the motion was filed. (Cal. Rules of Court, rule 3.1348(a).)

Defendant Cynthia Boyle is entitled to monetary sanctions because Plaintiff failed to comply with the parties' agreement serve "objection-free" supplemental responses by several deadline extensions. Despite Plaintiff's assertions concerning trial, familial obligations, and Plaintiff being out of the country in June of 2026, Plaintiff provides no substantial justification for the delay in serving supplemental responses between the final deadline extension (July 9, 2026) and the filing of this motion (July 21, 2026). Nor does Plaintiff explain why objections were included in the

supplemental responses other than his claim that his original responses reserved his rights to object. However, this explanation ignores the parties' agreement as to objection-free responses. Furthermore, it took Ms. Boyle filing this motion for Plaintiff to serve the supplemental responses. (See *Masimo Corp. v. The Vanderpool Law Firm, Inc.* (2024) 101 Cal.App.5th 902, 909 fn. 9 [“[F]orcing a party to resort to the court to get discovery is . . . sanctionable behavior.”].)

Counsel's hourly rate is \$650. (Gould Decl. ¶ 20.) The request includes 7.0 hours preparing the motion and supporting papers; 6.0 hours reviewing and responding to the opposition and traveling to and appearing at the hearing.

The court finds the requested hourly rate is reasonable, but the time requested is excessive, and the supporting declaration does not account for a \$60 discrepancy.

Therefore, the court grants defendant Cynthia Boyle's request for monetary sanctions in the reduced amount of \$6,500: 6.0 hours preparing the motion; 3.0 hours reviewing and responding to the opposition; and 1.0 hour to attend the motion hearing.

CONCLUSION and ORDER

Defendant Cynthia Boyle's motion to compel further responses to her first set of requests for production is granted. The court orders Plaintiff to serve objection-free supplemental responses within 30 days of the issuing of this order.

The court awards defendant Cynthia Boyle \$6,500 in monetary sanctions. Plaintiff and his counsel of record are ordered to pay Ms. Boyle's counsel within 30 days of the issuing of this order.

Defendant Cynthia Boyle to give notice.

[1] Oppositions must be filed and served at least nine court days before the motion hearing. (Code Civ. Proc., § 1005, subd. (b).)